

24STCV26202 24STCV26202

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-01

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Case Number: 24STCV26202 Hearing Date: July 1, 2026 Dept: 512

HEARING DATE: Weds.,

July 1, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Sandoval,

et al. v. Valenzuela, et COMP. FILED: 10-09-24

al.

CASE

NUMBER: 24STCV26202

NOTICE: NO

PROCEEDINGS: PETITIONS

FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF

JUDGMENT FOR MINOR

MOVING PARTY: Petitioner

Luz Sandoval on behalf of minor Claimant Dylan Castaneda and minor Claimant Nick

Castaneda

RESP. PARTY: None

PETITION TO APPROVE COMPROMISE OF A DISPUTED CLAIM

(CCP § 372, CRC, rule 7.950.5.)

TENTATIVE RULING:

The

Petitions for Approval of Compromise of Claim or Action or Disposition of

Proceeds of Judgment for Minor filed on behalf of minor Claimants Dylan Castaneda and Nick Castaneda are CONTINUED to July 30, 2026 at 9:00 a.m.

in Department 512 of the Stanley Mosk Courthouse.

At

least 16 court days prior to the next scheduled hearing, Petitioner is to file

and serve proof of service and notice of hearing regarding both Petitions and

supplemental papers addressing the deficiencies discussed herein.

Moving

parties are ordered to give notice.

SERVICE:

[

] Proof of Service Timely Filed (CRC, rule 3.1300) NO

[

] Correct Address (CCP §§ 1013, 1013a) NO

[

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None filed as of June 29,

2026 ☐ Late ☒ None

REPLY: None filed as

of June 29, 2026 ☐ Late ☒

None

ANALYSIS:

I.

Background

On

October 9, 2024, Plaintiffs Luz Sandoval, Fredy Castaneda, Fredy Castaneda, Jr.,

and Brandan Castaneda ("Plaintiffs"), and Minor Plaintiffs Nick Castaneda, by

and through Luz Sandoval, and Dylan Castaneda, by and through Luz Sandoval,

("Minor Plaintiffs") brought the instant action against Defendants Lisa Marie

Valenzuela and Does 1-100, alleging causes of action for Breach of Contract,

Breach of Implied Warranty of Habitability, Intentional Infliction of Emotional

Distress, Negligence, Nuisance, Wrongful Eviction, and Violation of Civil Code

section 1942.4. (Compl., p. 1.)

On

October 14, 2024, Petitioner Luz Sandoval ("Petitioner")'s application to

appoint Petitioner as Dylan Castaneda's guardian ad litem was granted. (10/14/24

Order.)

On

January 14, 2025, Petitioner's application to appoint Petitioner as Nick

Castaneda's guardian ad litem was granted. (1/14/25 Order.)

On

May 27, 2025, Defendant filed an Answer.

On

April 10, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On

May 28, 2026, Petitioner filed the instant Petitions for Approval of Compromise

of Claim or Action or Disposition of Proceeds of Judgment for Minor (the

"Petitions") on behalf of minor Plaintiffs. Petitioner also filed Proposed

Orders and Proposed Orders to Deposit Funds in Blocked Account.

No

Opposition has been filed.

II.

Legal

Standard & Discussion

Court approval is required for all settlements of a minor's

claim. (Prob. Code §§ 3500, 3600, et seq.;

Code of Civ. Proc., § 372.) “ ‘[W]ithout trial court approval of the proposed

compromise of the ward’s claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding

[on the minor] until it is endorsed by the trial court.’ ” (Pearson v. Superior Court (2012) 202

Cal.App.4th 1333, 1338.) A minor, like Claimant, “shall appear either by a

guardian or conservator of the estate or by a guardian ad litem appointed by

the court in which the action or proceeding is pending, or by a judge thereof,

in each case.” (Code Civ. Proc., § 372, subd. (a)(1).)

To obtain court approval of the

settlement of a minor’s claims, the petitioner must file a “verified petition

for approval of the settlement and must disclose ‘all information that has any

bearing upon the reasonableness of the compromise.’ ” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249,

256, fn. 4, citing Cal. Rules of Court, rule 7.950.)

A.

Petition

of Dylan Castaneda

The Court finds the following deficiencies are in the Petition:

There is no proof of service filed demonstrating the

Petition, Notice of Hearing, and Proposed Orders were served on Respondent.

As to the Proposed Order to Deposit Funds in Blocked Account form, ¶ 3

does not list Petitioner as “parent” in addition to “guardian.”

Accordingly,

the Petition is CONTINUED to allow Petitioner to file supplemental papers

addressing the deficiencies noted herein.

B.

Petition

of Nick Castaneda

The Court finds the following deficiencies are in the Petition:

There is no proof of service filed demonstrating the

Petition, Notice of Hearing, and Proposed Orders were served on Respondent.

Attachment 8 is unreadable.

As to the Proposed Order to Deposit Funds in Blocked Account form, ¶ 3

does not list Petitioner as “parent” in addition to “guardian.”

Accordingly,

the Petition is CONTINUED to allow Petitioner to file supplemental papers

addressing the deficiencies noted herein.

III.

Conclusion

& Order

For

the reasons stated above, the Petitions for Approval of Compromise of Claim or
Action or Disposition of Proceeds of Judgment for Minor filed on behalf of
minor Claimants Dylan Castaneda and Nick Castaneda are CONTINUED to July 30,
2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At

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and serve proof of service and notice of hearing regarding both Petitions and
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